

**SFIO Vs Adarsh Buildtech. And others COMA
No.5/2019
CNR No. : HRGR-01-007022/2019**

Since there are 187 different accused, the proceedings of the case with respect to each of the accused, including the bail applications and other applications filed by them, is as under:

Present : Sh. Lokender Singh Raghav, Senior Standing Counsel, alongwith Sh.Satish Aggarwal, SFIO assisted by Sh. Hari Kishan, Public Prosecutor for the SFIO.

**Accused Companies, A-1 to A-70
And Accused No. 123 Rohit Modi**

Present : Accused Rohit Modi, authorized representative of the above companies not produced by the jail authorities.

As mentioned in the earlier orders, all the above referred accused companies are being represented by accused, Rohit Modi, who is already in custody in this case in personal capacity also and at present lodged in Central Jail, Jaipur (Rajasthan) in another case.

Today accused Rohit Modi, has been produced through video conferencing. Accused Rohit be kept in Central Jail, Jail(Rajasthan) till 17.12.2019 and be produced in the court on the date fixed through video conferencing.

**Accused Companies, A-71 to A-78
(And accused A-135, Sidharth Chauhan)**

The anticipatory bail application filed by accused A-135, Sidharth Chauhan in his personal capacity as well as being Director and authorized representative of accused companies A-71 to A-78, has been dismissed vide detailed order dated 1.8.2019 by my Learned Predecessor and now his application for bail has also been dismissed by our Hon'ble High Court, Chandigarh vide order dated 13.11.2019. But despite this, he has not appeared or surrendered. No other authorized person on behalf of

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:..2019
(Geetu)

above accused-companies has appeared despite notice to the above accused. As such, these companies shall be represented by above accused.

However, in order to procure the service of accused, named-above, in his personal capacity, warrant of arrest issued against him has been received back unexecuted. As such, his fresh warrant of arrest be issued for 17.12.2019 to be executed by DCP Hq., Gurugram through a senior police officer, who will appear on the date fixed to explain, if it remained un-executed.

Accused Companies promoted by accused, Vivek Harivyasi:

- A-79 : A3G Infra Private Limited**
- A-90 : Cynosure Real Estate Pvt. Ltd.**
- A-91 : EOS Developers Pvt. Ltd.**
- A-92 : Adler Infra Ventures Pvt. Ltd.**
- A-93 : Headstrong International Exports Pvt. Ltd.**
- A-115: Vivek Harivyasi in custody.**

Present: Accused Vivek Harivyasi, in custody No. A-115, with counsel.

Accused Vivek Harivyasi has not been produced in custody through Video Conferencing or in person by Superintendent, District Jail, Bhondsi as he is stated to have been taken to GH Gurugram due to his ill-health. However, Jail Warrant of accused Vivek Harivyasi has been received from the concerned jail. Accused Vivek Harivyasi be kept in District Jail, Bhondsi, Gurugram till 17.12.2019 and be produced in the court on the date fixed through video conferencing. A note on his jail warrant be given in respect thereof.

Accused Company Prince Realbuild Pvt. Ltd., A-80 :
(through Naveen Kumar, Accused No. A-139 and AR for No. A-80)

Bailable warrant of the above accused-company through its AR has been received back unexecuted with report that he is not residing at the given address for the last one year. Fresh bailable warrants be

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

issued for 17.12.2019 on furnishing complete/latest address of said accused within 7 days.

Accused Companies,

A-81 : HNS Infratech Pvt. Ltd.

A-82 : HNS Projects Pvt. Ltd.

(Through Accused A-140, Surender Singh)

**Present : Accused A-140, Surender Singh in custody
with Sh. Anuj Lohia, Advocate for accused.**

Accused No. A-140 produced before me in court in custody. He be kept in District Jail, Bhondsi, Gurugram till 17.12.2019 and be produced in the court on the date fixed through video conferencing.

At this stage, it was brought to my notice by learned PP that his application for regular bail has been dismissed by our Hon'ble High Court, Chandigarh on 13.11.2019.

Accused-Company, A-83 : Sear Built Pvt. Ltd.

Present : None

Bailable warrant of above said accused company was received back on previous date of hearing unexecuted with the report that address is incomplete. Today learned Senior Standing Counsel as well as Learned PP appeared for SFIO were again impressed upon to file complete address of said accused within 7 days. Thereafter fresh bailable warrant be issued for the date fixed i.e. 17.12.2019 on filling of complete address.

**Accused-Partnership Firm, A-84, Abhay Kumar and Associates
(through Accused Abhay K. Shah, A-127, its partner)**

Present : Sh. Joydip Bhattacharya, Advocate, for accused.

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

Warrant of arrest issued for today received back unexecuted with report that he was away alongwith his family for religious trip. Execution of warrant of arrest of accused no. 127, issued in pursuance of order dated 3.10.2019, is hereby extended upto 17.12.2019 to be executed by DCP Hq., Gurugram through a senior police officer, who will appear on the date fixed to explain, if it remained un-executed.

Since executing constable appears to have given a false report regarding non-availability of above mentioned accused and has not made any sincere efforts to procure the presence, therefore, necessary intimation be sent to the Quarter concerned with direction to attach salary of EHC Ramesh No. 3600 for the month of November, 2019, payable in December 2019.

Accused Company, A-85 : Axtron Tex Chem(I) Pvt. Ltd.
and accused No. A-130, Jainam Rathod.

Present : Accused No.A-130, Jainam Rathod in custody with
S/Shri Salim Malik, Advocate along with Gulshan
Sharma, Local Advocate.

Accused No. A-130, Jainam Rathod has already surrendered and been arrested. His regular bail application has also been dismissed by our Hon'ble High Court, Chandigarh, vide order dated 13.11.2019. As such, his presence is marked on behalf of above accused company, A-85, as well as in his individual capacity.

Accused A-130 produced before me in court in custody. He be kept in District Jail, Bhondsi, Gurugram till 17.12.2019 and be produced in the court on the date fixed through video conferencing.

Accused companies :
A-86 : Laxmikripa Buildcon Pvt. Ltd.
A-87 : Riddhi Siddhi Infraprojects Pvt. Ltd.
A-88 : Riddhi Siddhi Infratech Pvt. Ltd.

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

**Present: Shri Jai Singh Chauhan, AR of above companies (not present today).
Shri Harash Kaushik, Advocate and Sh.
Kuldeep Singh, Local Advocate assisted by Sh. Abhishek Sharma, Advocate.**

All the above accused companies are duly represented by Shri Jai Singh Chauhan, Authorized representative, who has already appeared as per section 305.

However, today an application for exemption of Jai Singh Chauhan, AR of accused, No. A-86 to 88 has been filed on the ground that he has to attend the marriage of his nephew today at Jodhpur. Copy of marriage card has been enclosed alongwith application. In view of the circumstances so mentioned, his presence is exempted for today only. As such, he is directed to appear on date fixed 17.12.2019 for further proceedings.

**Accused-Partnership Firm, A-89: SL Bohra & Associate
(through Sudhir Mehta, Accused No. A-170 and Raj Kumar Bohra, accused A-171, its partners)**

Present: Shri Ankur Sood Advocate along with Shri Pankaj Motsara Local Advocate for the all the above accused.

Since an application for anticipatory bail on behalf of accused-firm, A-89, which has been filed by the applicant-accused, No. A-170 and A-171 on previous date of hearing, is pending adjudication, therefore, the relief granted to said accused by my learned Predecessor vide order dated 4.9.2019 shall continue till decision of Anticipatory Bail application.

Accused Companies No.:
A-94: Aarti Marketing Pvt. Ltd.
A-95: Caranation Trading Pvt. Ltd.
A-96: Cyan Financial Solutions Pvt. Ltd.
A-97: Lever Finvest Pvt. Ltd.

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

Present:

Rahul S/o Mangal Sain on bail (Being Director and AR of above companies)

S/Shri Arvind Jain, Advocate along with Dinesh Kumar and Prashant Yadav, Advocates.

All the above accused companies are duly represented by Shri Rahul son of Sh. Mangal Sain, Authorized representative, who has already appeared as per section 305. As such he is directed to appear on date fixed 17.12.19 for further proceedings.

**Accused company No. A-98 : Rolex Exports Pvt. Ltd.
(through its AR)**

Present:

Naresh Kumar S/o Har Prasad on bail (Being Director and AR above company)

S/Shri Arvind Jain, Advocate along with Dinesh Kumar and Prashant Yadav, Advocates.

The above accused company is duly represented by its AR, Naresh Kumar, who has already appeared as per section 305. As such he is directed to appear on date fixed 17.12.19 for further proceedings.

**Accused-companies : A-99 : Dinkar Commercials Pvt. Ltd.
and A-100 : Amarendra Financial Pvt. Ltd.
(through Accused No. A-176 Raj Kumar Modi, its director)**

Present: Accused No. A 176 Raj Kumar Modi in custody.

The accused has been produced today in court in custody. He be kept in District Jail, Bhondsi, Gurugram till 17.12.2019 and be produced in the court on the date fixed through video conferencing.

His application for regular bail has also been dismissed by our Hon'ble High Court, Chandigarh on 13.11.2019.

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

It is mentioned here that due to inadvertence, warrant of arrest was issued against said accused whereas he has already been taken in custody and is kept confined in District Jail Bhondsi Gurugram. The inadvertent mistake is hereby rectified regarding issuance of warrant of arrest against him.

Accused-companies:

- A-101: Alba Polymers Ltd.**
- A-102: Channel Nine Entertainment Ltd.**
- A-103: Funny Software Ltd.**
- A-104: Gold Line International Finvest Ltd.**
- A-105 : Inceptum Enterprises Limited**
- A-106 : Kanak Krishi Implements Ltd.**
- A-108: Porsche Capital Market Ltd.**
- A-109 : Sagitarius Advertising Ltd.**
- A-110: Satkar Finlease Ltd.**
- A-111 : Surya Marketing Ltd.**
- A-112 : Vishal Digital Studio Color Lab Pvt. Ltd.**

Present:

- Sh. Abishek, AR of A-101, along with S/Shri Kaushal Kumar and Ranjan Kumar, Advocates.**
- Sh. Deepak AR of A-102 along with Shri Surender Kr. Advocate.**
- Sh. Ram Naresh AR of A-103 along with Ms. Anita Shit Advocate.**
- Sh. Pawan Sharma AR of A-104, along with Shri Vichitra Sharma Advocate.**
- Sh. Annop, AR of A-105 along with Sandeep Joon, Advocate.**
- Sh. Niraj Kumar, AR of A-106 along with Nitesh Bhardwaj, Advocate.**
- Sh. Ranjan Kumar, Advocate for Jishan, AR of A-108**
- Sh. Vikas Paul, AR of A-109 along with Sachin Bali, Advocate.**
- Sh. Raju Yadav, AR of A-110 along with Rajesh Kumar, Advocate.**
- Sh. Ritik Sharma, AR of A-111 along with Sh. Varun Chugh, Advocate.**
- Sh Devender Kumar on bail (Being Director and AR of A-112 company) along with S/Sh. Rohit Arora and Anubhav Almadi, Advocates.**

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

The ARs of all the above accused companies as named above are present. Their presence is accordingly marked on behalf of the accused companies referred above. And they all are directed to appear on date fixed, 17.12.2019 for further proceedings.

A-107 : Padmawati Art Creation Pvt. Ltd.

Bailable warrant of above mentioned accused company, A-107 received back unexecuted with the report that the premises of said company are lying closed. Fresh bailable warrant be issued for 17.12.2019.

**Accused who are in custody produced by Jail Incharge, Jaipur
through Video Conferencing**

A-113 : Mukesh Modi.
A-114 : Rahul Virender Modi.
A-120 : Vaibhav Lodha.
A-122 : Virender Modi
A-123 : Rohit Modi.
A-125 : Rajeshwar Singh
A-126 : Bharat Modi
A-131 : Ishwar Singh Sindal
A-134 : Vivek Purohit
A-142 : Bharat Dass Vaishnav

All the above named accused have already been arrested in this case and sent to judicial custody. However, after the arrest of all the above accused, they were taken by Jaipur Police in another case and were lodged in Central Jail, Jaipur.

All the above named accused except accused Ishwar Singh No. A-131 produced before me through Video conferencing. Accused Ishwar No. A-131 was not produced and it was stated that he has been taken to Ahmedabad Court for his appearance. However, his jail warrant was received in the court. All above named accused be kept in Central

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

Jail, Jaipur till 17.12.2019 and be produced in the court on the date fixed through video conferencing.

A-117 : Priyanka Modi in custody with Sh. Prashant Yadav, Advocate.

Accused Priyanka Modi A-117 produced before me through Video conferencing. Above named accused be kept in Central Jail, Jaipur till 17.12.2019 and be produced in the court on the date fixed through video conferencing.

**A-167 : Rajeev Verma
A-168 : Sushil Maloo
A-169 : Rajendra Singh Bhandari
(Exempted from personal appearance till further orders)**

Present : All the above accused on bail represented through Shri Mohan Chaudhary and Shri Rakesh Kumar, Advocates

All these accused persons have already surrendered and vide order dated 13.8.2019 their bail application was allowed and later on on 20.8.2019 they furnished bail bonds and moved an application under Section 317 Cr.P.C. for seeking permanent exemption of personal appearance which was allowed by my Learned Predecessor, vide order dated 4.9.2019 by observing that personal appearance of the above three accused persons will remain exempted subject to further orders of this court and subject to the condition that their Advocate will appear on each and every date of hearing to record the proceedings and then they will appear as and when required.

Today Sh. Rakesh Kumar, Adv. put in appearance on behalf of said accused persons.

Accused who are absent but moved bail applications under section 438 Cr.P.C.

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

- A-118 : Jinendra Vyas (Anticipatory bail application dismissed on 24.9.2019 by my learned Predecessor)**
- A-127 : Abhay K. Shah (Anticipatory bail application dismissed on 23.9.2019 by my learned Predecessor)**
- A-137 : Shinder Pal Singh (Anticipatory bail application dismissed on 13.9.2019 by my learned Predecessor)**
- A-138 : Girbir Singh Sandhu (Anticipatory bail application dismissed on 13.9.2019 by my learned Predecessor)**
- A-155 : Mahender Singh Tak**
A-163 : Megha Chauhan
A-164 : Indu Tak
A-165 : Shyam Bihari Gupta
A-166 : Ravi Tak
A-170 : Sudhir Mehta
A-171 : Raj Kumar Bohra
A-172 : Saurabh Tak
A-178 : Mahesh Dutt Sharma
A-187 : Mahesh Kumar Tak
(Anticipatory bail of remaining accused mentioned above are still pending)

In so far as, accused Nos. 155, 163, 164, 165, 166, 170, 171, 172, 178 and 187 are concerned, the benefit granted to them by my learned Predecessor vide order dated 4.9.2019 shall remain admissible to them.

Warrant of arrest issued against remaining accused named above not received back executed or unexecuted. Execution of warrant of arrest issued against these persons, in pursuance of order dated 3.10.2019 issued by my learned Predecessor, is extended returnable upto 17.12.2019 to be executable through DCP(HQ) who is to appear in court in person in case of non-execution on the date fixed.

Accused, who are not served with Bailable warrants.

A-144 : Joydeep Dass Gupta

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

A-145 : Lovekush Sharma
A-148 : Avanish Kumar Tyagi
A-151 : Poonam Madan
(above named accused on bail and represented by Sh. Vishal Gupta, Adv.)

A-152 : Nazima Khan
A-153 : Shabbir Khan
A-154 : Bharat Kumar Mardia
(Above named accused No. 154 on bail with Ms. Suchitra Kumbhat, Adv.)

A-156 : Praveen Maheshwari on bail (Being Director of accused No. A-50 and A-51/Companies)
A-157 : Rajeev Maheshwari on bail (Being Director of accused No. A-50 and A-51/Companies)

Sh. Sanjeev Jain, Advocate for accused no. A-156 and A-157

Today the case was fixed for filing replies to applications moved on behalf of accused A-144, A-145, A-148 and A-151 for personal exemption on permanent basis. Replies have not been filed by the SFIO. Learned counsel for said accused persons requested for considering the request of these accused persons by bringing it into the notice of undersigned that the applications were pending adjudication since 3.10.2019. Although Learned Senior Standing Counsel for SFIO formally requested for adjournment but, as pointed out by learned counsel Sh. Vishal Gupta, the applications are pending for more than one month. Accordingly, heard on the applications. Record perused. Indisputably, no effected proceedings are being conducted because the case is still at the stage of summoning of all the accused persons, therefore, the presence of accused Nos. A-144, A-145, A-148 and A-151 is exempted till further orders. However, it is impressed upon Sh. Vishal Gupta, Adv, that he would appear on each and every date of hearing on their behalf. Applications in question dated 3.10.2019 stand disposed off accordingly.

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

Accused No. A-156 and A-157, who are on bail, have put in appearance. They are directed to appear on the date fixed i.e. 17.12.2019 for further proceedings.

Bailable warrants of accused No. 152 and 153 remained unexecuted. As such, let fresh bailable warrants of other accused who are unserved for today be issued for 17.12.2019.

Accused who are absent.

- A-116 : Nitin Rathore with (Sh. Aljo K. Joseph, Adv.)
(A/bail application dismissed on 15.11.2019 by this court)**
- A-119 : Vinay Kumpawat**
- A-121 : Paras Bolia (A/bail application pending)**
- A-124 : Neha Gemawat**
- A-128 : Manish Chauhary**
- A-129 : Deepak Shrimali**
- A-132 : Meenakshi Modi**
- A-133 : Prakash Chandra Purohit**
- A-136 : Akshat Singh**
- A-139 : Naveen Kumar**
- A-141 : Aditya Sarda (Sh. Karan K. Gogna & R.K. Mohit Gupta, Adv., appeared on his behalf)**
- A-143 : Sudhir Punia**
- A-146 : Leena Hariviyasi (A/bail application pending)**
- A-147 : Vimal Sanwarmal Sharma with (Sh. Vikram Panwar & Sh. Hitesh Kumar) (A/bail application pending)**
- A-160 : Shiv Raj Sharma. (A/bail application pending)**
- A-162 : Naveen Choudhary (A/bail application pending)**
- A-173 : Peeyush Aggarwal**
- A-174 : Paramvir Singh Sangwan (A/bail application pending)**
- A-175 : Vijay Jhindal (A/bail application pending)**
- A-177 : Rajiv Kumar Rana**

An application from personal appearance from accused no. A116 has been filed on the ground that the applicant is pursuing his legal remedy before Hon'ble High Court, Chandigarh, after dismissal of

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

application for anticipatory bail from this court. This is no ground to seek exemption as no order of protection, on interim basis or otherwise, is passed by our Hon'ble High Court, Chandigarh, in respect of said accused. As such, request is declined and application stand disposed off. Now warrant of arrest of accused no. A-116 be issued for 17.12.2019 to be executed through DCP(HQ).

An application for exemption from personal appearance of accused no. 141 has been filed on the ground that the accused was not supplied documents etc. by the Complaint side, in respect of which, application u/s 207 Cr.P.C was pending adjudication, therefore, he was not in position to appear before the court. Heard, taking a lenient view as per the contents of application in question, presence of accused no. 141 is exempted for today only. Today the case was also fixed for filing reply to application u/s 207 Cr.P.C dated 3.10.2019 of accused no. 141 by the prosecution. Reply not filed. However, learned senior standing counsel stated at bar that they have supplied all the documents in soft copy to accused no. 141 by way of pendrive and today, they have also handed over copy of complaint which fact has not been disputed by learned defence counsel. Accordingly, the application referred to above stand disposed off. The SFIO was also to file reply to another application of accused no. 141 for cancellation of warrant of arrest. On the request of prosecution/complainant, the case is adjourned to 17.12.2019 for filing reply to application dated 3.10.2019 of accused no. 141 for cancellation of warrant of arrest.

An application for recall of warrant of arrest against accused no. 175 on 4.9.2019 and 3.10.2019 had been filed by Sh. Nitin Saini, Adv., Reply not filed by the complainant side. However, it has been brought to my notice by learned Senior Standing Counsel that there was no need to file reply as the application was no longer required in view of interim

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

protection granted to him by this court. Report perused. Apparently, the direction has been given by this court that no coercive process shall be initiated against accused no. 175 till disposal of application for anticipatory bail. Meaning thereby, the application, referred to above, has been rendered infructuous. Accordingly, the same is hereby disposed off being infructuous.

At this stage, Sh. Akash Singh Jangra, Adv., on behalf of accused no. 177, had moved an application with request to supply copies of complaint with complete documents in order to enable applicant/accused to move appropriate application before this court. However, learned senior standing counsel stated at bar that they have supplied all the documents in soft copy to accused no. 177 by way of pendrive and today, they have also handed over copy of complaint which fact has not been disputed by learned defence counsel.

Since bail applications of accused No. 121, 146, 147, 160, 162, 174 and 175 are pending adjudication before this court, till decision of bail applications, no coercive process shall be initiated against them.

Warrant of arrest issued against remaining accused named above received back unexecuted. Execution of warrant of arrest issued against remaining above named accused, in pursuance of order dated 3.10.2019 issued by my learned Predecessor, is extended returnable upto 17.12.2019 to be executed through DCP(HQ).

Accused, A-149 : Vijay Shukla(Anticipatory bail pending)

Present : S/Sh. Puneet Sharma and Gautam Avasthi, Advocate, for the accused, A-149.

Accused, A-149, Vijay Shukla, had approached Hon'ble Supreme Court for relief in Writ Petition (Criminal) No.239/2019 entitled

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

“Vijay Shukla Vs. Union of India and others” dated 3.9.2019 but the same has been disposed off on 19.9.2019.

Now fresh bailable warrant, issued in pursuance of order dated 30.7.2019 by my Learned Predecessor, be issued for 17.12.2019.

Accused who are in custody :

A-130 : Jainam Rathod
A-150 : Ajit Singh Rathore
A-158 : Ramlal Arya
A-159 : Hemant Kumar Jain
A-161 : Praveen Kumar
A-183 : Rituraj Singh
A-184 : Dushyant Singh Rathore

A-186 : Jitesh Kumar Parmar.

All the above named accused produced before me in the court in custody. All above named accused be kept in District Jail, Bhondsi till 17.12.2019 and be produced in the court on the date fixed through video conferencing.

Regular bail applications of all the above referred accused have already been dismissed. Accused named above had not been produced by District Jail, Bhondsi, Gurugram today. Let production of above named accused persons be issued in the name of Superintendent, District Jail Bhondsi for 2.11.2019.

A-179 : Damyanti Bhandari
A-182 : Nimesh Kumar Ramesh Chandri Soni
A-185 : Shashank Shekhar Singh Rathore
Present:- Sh. Amit Kumar, Adv., for Accused no. A-179.
Sh. Pawan Kumar Raghav, Adv. for accused No. A-182 and A-185.

All the above named accused appeared in person. They are on bail. Hence, they are directed to appear in the court on 17.12.2019 the date already for further proceedings.

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

At this stage an application to turn an approver and become witness for the prosecution on behalf of accused no. 179 has been filed in compliance of order dated 13.11.2019 passed by Hon'ble Punjab and Haryana High Court, Chandigarh in CRM-M No. 37280-2019. Report of ahlmad received and perused. Likewise, it is necessary to mention here that, two separate applications of accused no. 182 and 185 were filed earlier on 18.11.2019. Let their statements be recorded separately on the date fixed on the lines of the direction given by hon'ble High Court while extending concession of bail to accused no. 179, 182 and 185 regarding "Approver".

Accused No.A-180 : Ichchhita Dungarwal

Present : Accused no. A-180 on bail with S/Sh. Joydip Bhattacharya and Hitesh Kumar, counsels.

An application for exemption from personal appearance of accused no. 180 has been filed on the ground that her two years old minor child is not well since last few days, therefore, she was not in position to appear before the court. Heard, taking a lenient view as per medical certificate enclosed with application, presence of accused no. 180 is exempted for today only.

Today the SFIO was to file reply to application for permanent exemption of accused No. 180. Reply has not been filed by the SFIO. Learned counsel for said accused requested for considering the request of this accused by bringing it into the notice of undersigned that the application was pending adjudication since 3.10.2019. Although Learned Senior Standing Counsel for SFIO formally requested for adjournment but, as pointed out by learned counsel **S/Sh. Joydip Bhattacharya and Hitesh Kumar, counsels**, the application is for more than one month. Accordingly, heard on the applications. Record perused. Indisputably, no effected proceedings are being conducted because the case is still at the stage of summoning of all the accused persons, therefore, the presence of

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

accused No. A-180 is exempted till further orders. However, it is impressed upon **S/Sh. Joydip Bhattacharya and Hitesh Kumar, counsels**, that he would appear on each and every date of hearing on their behalf. Applications in question dated 3.10.2019 stand disposed off accordingly.

A-181 : Neha Kataria

Present : Accused Neha Kataria on bail with Sh. Hitesh Kumar, Adv.

An application for exemption from personal appearance of accused no. 181 has been filed on the ground that she is not well and suffering from vertigo since last few days, therefore, she was not in position to appear before the court. Heard, taking a lenient view as per medical certificate enclosed with application, presence of accused no. 181 is exempted for today only.

Today the SFIO was to file reply to application for permanent exemption of accused No. 181. Reply has not been filed by the SFIO. Learned counsel for said accused requested for considering the request of this accused by bringing it into the notice of undersigned that the application was pending adjudication since 3.10.2019. Although Learned Senior Standing Counsel for SFIO formally requested for adjournment but, as pointed out by learned counsel **Sh. Hitesh Kumar, Adv.**, the application is for more than one month. Accordingly, heard on the applications. Record perused. Indisputably, no effected proceedings are being conducted because the case is still at the stage of summoning of all the accused persons, therefore, the presence of accused No. A-180 is exempted till further orders. However, it is impressed upon **Sh. Hitesh Kumar, Adv.** that he would appear on each and every date of hearing on

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)

their behalf. Applications in question dated 3.10.2019 stand disposed off accordingly

The attendance sheet of accused is enclosed herewith.

22.11.2019

(Geetu)

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)

(Raj Gupta)
ASJ, Gurugram
(UID no.HR0110)
Date of order:22.11.2019
(Geetu)